

HOUSE No. 3612

The Commonwealth of Massachusetts

PRESENTED BY:

Bruce J. Ayers

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to increasing the fines and penalties for texting and driving.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bruce J. Ayers</i>	<i>1st Norfolk</i>	<i>1/15/2025</i>

HOUSE No. 3612

By Representative Ayers of Quincy, a petition (accompanied by bill, House, No. 3612) of Bruce J. Ayers for legislation to increase the fines and penalties for texting while driving. Transportation.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 3263 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to increasing the fines and penalties for texting and driving.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 13B of chapter 90 of the General Laws is hereby amended by
2 striking out the last sentence of subsection (a) and inserting in place thereof the following
3 sentence:- For the purposes of this section, an operator shall not be considered to be operating a
4 motor vehicle if the vehicle is stationary and not located in a part of the public way intended for
5 travel but shall be considered to be operating a motor vehicle if the vehicle is stopped in traffic.

6 SECTION 2. Section 13B of said chapter 90, as so appearing, is hereby amended by
7 striking out the first sentence of subsection (b) and inserting in place thereof the following
8 subsection:-

9 (b) A violation of this section shall be punishable by a fine of \$250 and a permit or
10 license suspension of 90 days for a first offense, by a fine of \$500 for a second offense and by a
11 fine of \$750 for a third or subsequent offense.

12 SECTION 3. Section 24 of said chapter 90, as so appearing, is hereby amended by
13 inserting after the word “both”, in line 737, the following words:- ; provided, however, that any
14 conviction made pursuant to the provisions of this section resulting from a violation of section
15 8M, 12A or 13B shall operate as a conviction for purposes of a registry of motor vehicles action
16 and for purposes of the safe driver insurance plan established pursuant to section 113B of chapter
17 175.